

SYNTHETIC TRAINING RECORD — NOT FILED — ALL FACTS AND IDENTIFIERS
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UNITED STATES DISTRICT COURT FOR THE NORTHERN DISTRICT OF WEST
VIRGINIA

Proceeding: Supporting contract memorandum.

Asterglen Freight Software, Inc., Plaintiff, v. Copper Kestrel Logistics, LLC and Meridian Silt
Holdings, LLC, Defendants.

Civil Action No. SYN-NDWV-25-CV-0618

Copper Memorandum Supporting Partial Summary Judgment

Filed November 3, 2025 — District ECF No. 43

Copper Kestrel seeks judgment on Asterglen's Count I contract claim because Asterglen demanded breach damages without performing the written notice-and-cure sequence in Section 9.2. The relevant failure is not a technical defect in phrasing. Asterglen declared immediate termination, disabled access, demanded \$480,000, and provided zero days to cure where the executed agreement required fifteen calendar days.

The motion may be resolved without choosing between the parties' different recollections of July 8. Copper Kestrel contends that Asterglen temporarily permitted continuation while paperwork remained open. Asterglen says its project manager allowed only a controlled test under the June 10 conditions. Under either account, the contract's remedy provision required a written breach notice and cure opportunity before termination or a demand for breach damages.

The motion is deliberately partial. Count II against Meridian and Copper Kestrel's \$120,000 counterclaim involve overlapping evidence and remain pending. Copper Kestrel asks the Court to decide only whether Asterglen may proceed on Count I after bypassing the agreed precondition.

Standard for decision

Rule 56 permits judgment when the admissible materials show no genuine dispute of material fact and the movant is entitled to judgment as a matter of law. The Court views competing evidence and reasonable inferences in favor of the nonmovant. It does not weigh credibility or select one witness's account merely because that account appears in a deposition excerpt.

Contract terms are applied according to their objective text when that text supplies a workable sequence. A party seeking a remedy conditioned on notice and cure must ordinarily show that it performed the condition or that a recognized, supported basis excuses performance. A disagreement about the underlying breach does not automatically eliminate a cure provision; parties commonly cure under protest while preserving their legal positions.

Copper Kestrel accepts for this motion that a factfinder could conclude the twenty-nine additional terminals exceeded the written testing authorization. That assumption eliminates any need to resolve July 8 credibility. It does not answer whether Asterglen could skip Section 9.2 before terminating and demanding damages.

The dispositive facts are established by Asterglen's own corporate testimony and the written communication: no Section 9.2 notice issued after the July 18 audit, the July 22 action was immediate, and no fifteen-day opportunity followed before the \$480,000 demand. The later technical evidence also defeats an inference that cure necessarily could not occur.

The executed agreement prescribed the remedy sequence

The April 15, 2024 Pilot License listed twelve terminals. Section 9.2 stated that before either party terminated for material breach or sought breach damages, it would provide written notice describing the breach and fifteen calendar days to cure. The provision addressed both remedies in the disjunctive and placed notice before either one.

The June 3 proposal sought twenty-nine additional terminals. It remained unsigned. Asterglen's June 10 response permitted a controlled load test subject to written conditions while commercial review continued. Neither document amended Section 9.2. Meridian's June 14 statement of work governed its engagement with Copper Kestrel and gave Meridian no authority to change Asterglen's contract.

By July 1, forty-one identifiers had been provisioned. That fact could support Asterglen's assertion of an unauthorized expansion, depending on the character of the activity. It could also coexist with Copper Kestrel's contention that temporary activity was permitted. The Court need not decide the characterization.

Whatever breach Asterglen perceived, Section 9.2 supplied the next contractual step. Asterglen could identify the offending conduct in writing, direct a return to the twelve-terminal configuration, and allow fifteen calendar days. The record contains no executed amendment eliminating that sequence and no written waiver by Copper Kestrel.

No written cure opportunity preceded the demand

Asterglen conducted its compliance audit on July 18. The audit identified forty-one provisioned identifiers and questioned activity at the twenty-nine additions. It was an internal assessment, not a notice to Copper Kestrel specifying a material breach, a required cure, and a due date.

Asterglen's corporate representative admitted that no Section 9.2 notice issued on July 18, 19, 20, or 21. Copper Kestrel's operations witness likewise testified that the company received no written direction to reduce the configuration within fifteen calendar days. Meridian's engineer received no cure instruction for implementing that reduction.

The July 22 communication did not begin a future cure period. It disabled the shared credential, declared termination effective immediately, and demanded \$480,000. It did not state that termination or damages would be withdrawn if Copper Kestrel restored the twelve-terminal configuration by a specified date. Asterglen's witness confirmed that the communication gave zero days.

Because the same document both announced breach and imposed the conditioned remedies, it did not perform the promised sequence. A notice cannot provide a meaningful opportunity to cure after termination is already declared and the full damages demand is already due. The undisputed chronology establishes nonperformance of Section 9.2.

The July 8 dispute does not save Count I

Copper Kestrel's operations representative recalls that Asterglen permitted the teams to continue existing activity while paperwork was completed. Meridian's engineer recalls permission to continue the current test but did not understand the statement as a signed amendment.

Asterglen's corporate representative denies authorizing expanded production and recalls only a controlled test. No recording exists, and the notes use abbreviated phrases.

That conflict is genuine but not material to the cure issue. For purposes of this motion, the Court may assume Asterglen's account and assume that the forty-one-identifier activity exceeded authorization. Section 9.2 then required written notice and fifteen calendar days before the remedies Asterglen selected. The stronger Asterglen's breach contention, the clearer the contractual occasion for that notice.

Asterglen may not transform a disputed permission question into proof that cure would have been refused. Copper Kestrel consistently contested breach, but its operations witness testified that the company would have reduced the configuration under protest. The documents show technical review beginning after the audit and mitigation work after July 22.

Nor did the project manager's limited authority eliminate the cure clause. If the manager could not approve an amendment, that fact may undermine Copper Kestrel's authorization defense. It does not authorize Asterglen to disregard a separate remedy term signed by the parties.

Cure was technically feasible

The evidentiary materials show a practical path from forty-one identifiers to the original twelve. Technical personnel described freezing new provisioning, mapping sessions, completing or transferring necessary dispatch updates, separating shared routing references, disabling twenty-nine identifiers, and validating the remaining access.

A controlled test performed those steps within three business days. The test began with a preserved forty-one-identifier configuration and representative session conditions. It encountered one cached-route warning, corrected that condition, retained completed shipment information, and concluded with twelve active identifiers. The declarant candidly identified differences between the test and a live July environment.

Those limitations do not support Asterglen's futility theory at summary judgment. The relevant question is not whether cure was guaranteed to be costless. It is whether no reasonable factfinder could find that the contractual opportunity had value. Completion in three business days, plus Meridian's related work through July 25, supports feasibility well within fifteen calendar days.

Asterglen did not run a comparable analysis before July 22. Its audit recognized that identifiers could be disabled, but leadership proceeded directly to termination and damages. A party cannot create futility by withholding the notice that would have defined the required end state and coordinated the cure.

The damages demand was itself conditioned

Asterglen's July 22 demand combined \$348,000 in asserted contract value with \$132,000 in response, containment, and forensic-review costs, for a total of \$480,000. Count I seeks that same amount from Copper Kestrel. Section 9.2 expressly placed the cure opportunity before a demand for breach damages, not only before termination.

Asterglen therefore cannot avoid the provision by arguing that disabling access was a protective step distinct from litigation damages. The demand occurred in the same communication and rested on the same asserted material breach. No earlier writing allowed fifteen calendar days, and no later offer suspended the demand while cure was attempted.

Copper Kestrel's counterclaim seeks \$120,000 for alleged interruption and restoration costs. Its ledger identifies emergency dispatch labor, temporary routing services, customer credits, and technical restoration. Asterglen denies that claim. The amount matters here only because it shows that the parties' July actions may require coordinated financial treatment and possible offset if liability is later established on both sides.

The Court need not quantify either party's loss to resolve Count I. The absence of the agreed precondition bars Asterglen's present contract-damages claim even if its accounting could otherwise be proved.

The requested judgment leaves distinct matters pending

Count II alleges that Meridian intentionally interfered with Asterglen's contractual relationship. It concerns Meridian's knowledge of the unsigned proposal, its June 14 scope, its understanding of the July 8 discussion, and its technical work. Those issues are not resolved merely because Asterglen failed to satisfy Section 9.2 before demanding damages from Copper Kestrel.

Copper Kestrel's counterclaim alleges that Asterglen breached its own duties by disabling service without written notice and cure. Although the same clause and July events are involved, that claim requires proof of Copper Kestrel's causation and \$120,000 loss. Copper Kestrel does not seek affirmative judgment on it through District ECF No. 42.

The factual overlap is substantial. Witnesses, communications, system tables, cure evidence, and monetary consequences may appear again. That overlap counsels precision in the requested ruling. The Court may grant judgment on Count I while declining to decide disputed authorization, Meridian's intent, counterclaim damages, or any net amount.

Copper Kestrel also does not seek a finding that Asterglen's January audit conclusions were made in bad faith, that the additional configuration was authorized as a matter of law, or that the \$480,000 calculation was arithmetically inaccurate. None is necessary to enforce the notice-and-cure condition.

Conclusion

The signed Pilot License required written breach notice and a fifteen-calendar-day opportunity to cure before termination or a demand for breach damages. Asterglen's July 22 communication imposed both remedies immediately and gave Copper Kestrel zero days. Asterglen's own witness confirms that chronology.

The disputed July 8 permission cannot create a material issue on this motion because Copper Kestrel accepts Asterglen's breach characterization for purposes of the cure analysis. The three-business-day test and contemporaneous reduction work further show that a meaningful cure was possible. Asterglen's belief that Copper Kestrel would disagree does not establish that performance was impossible or that the written clause ceased to operate.

Copper Kestrel respectfully requests judgment on Count I only, with prejudice, and requests that the Court leave Count II and the \$120,000 counterclaim pending. The order should avoid unnecessary findings about disputed oral authorization, Meridian's intent, or final accounting.

District ECF No. 43 is supported by its five attachments: the provisioning ledger at District ECF No. 43-1, July 8 materials at District ECF No. 43-2, July 18 audit at District ECF No. 43-3, July 22 through July 25 chain at District ECF No. 43-4, and Asterglen's corporate deposition excerpts at District ECF No. 43-5. District ECF No. 44 supplies the corresponding statement of facts.